

IF YOUR CONDITION FLARES, READ THIS

Alberta Regulation 96/2026, section 15(4) — and a letter you can send to your MLA today.

What the regulation says

These are the exact words of the law. Not a summary.

AR 96/2026, s.15(4): “A director may refuse, suspend, vary or discontinue a benefit provided under section 3.02 of the Act for which an applicant or client is eligible if, in the director’s opinion, the applicant or client has (a) refused to seek or accept or has reduced or terminated the applicant’s or client’s reasonable employment, or (b) refused or neglected to participate in or make use of an employment support.”

AR 96/2026, s.16(a): “... an applicant or client must notify a director of the following: (a) the termination or commencement of employment by the applicant or client...”

Section 3.02 of the Act is ADAP. This power does not apply to people who remained on AISH.

The double-edged sword

When you flare, you already have to manage your employer — call in, and meet whatever that employer demands, often a doctor’s note, on their timeline, under rules the regulation does not govern or soften. A flare is precisely the state in which getting to a doctor to obtain that note is often impossible. The proof your employer wants is produced by the same capacity the flare has taken away.

Then the regulation adds a second, separate demand on top. Section 16(a) requires you to notify ADAP that your employment was reduced or terminated. And section 15(4)(a) makes that same fact a ground to cut your benefit.

So at the moment you are least able to do paperwork, the regulation requires you to do it twice — and the second report is a report against your own benefit. You must tell on yourself, to the body that holds your income, about the thing your body did that you could not control.

Their own word condemns it

The standard the regulation applies is “reasonable employment.” But “reasonable” is not defined in the Act, the regulation, or the Discussion Guide. An undefined word in law takes its ordinary meaning: fair, practical, within the limits of reason, not excessive.

Apply that ordinary meaning. It is not reasonable to expect a person whose disability is episodic to maintain employment their condition periodically makes impossible, or to prove during a collapse why they could not work. The government chose the word “reasonable” as its standard. By the plain meaning of that word, this standard is unreasonable as applied to people like us.

Two things we will be precise about

The regulation says “may” — it is a discretionary power, not an automatic cut, and we are not aware of a case where it has been used. The finding is that the power exists, that no protection is written against it, and that nobody can tell you what “reasonable” means.

And almost nobody moved to ADAP was assessed. The transition happened by operation of law on July 2, 2026. No appointment. No panel. Tens of thousands of people with episodic conditions were placed into a program that penalises precisely what their condition does — and nobody checked.

Fill in the letter over the page. Put your name on it. Send it to your MLA and to the Minister.

Find your MLA: www.assembly.ab.ca/members/members-of-the-legislative-assembly

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